enactment of the Andhra Pradesh Legislative Council Act, 2005. The legislative council of Tamil Nadu had been abolished in 1986 and that of Punjab and West Bengal in 1969.

In 2010, the Legislative Assembly of Tamil Nadu passed a resolution for the revival of the Legislative Council in the state. Accordingly, the Parliament enacted the Tamil Nadu Legislative Council Act, 2010 which provided for the creation of Legislative Council in the state. However, before this Act was enforced, the Legislative Assembly of Tamil Nadu passed another resolution in 2011 seeking the abolition of the proposed Legislative Council.

The various laws made by the Parliament (under Article 169 of the constitution) for the abolition or creation of State Legislative Councils are mentioned in Table 33.4.

COMPOSITION OF TWO HOUSES



Composition of Assembly

Strength The legislative assembly consists of representatives directly elected by the people on the basis of universal adult franchise. Its maximum strength is fixed at 500 and minimum strength at 60. It means that its strength varies from 60 to 500 depending on the population size of the state. However, in case of Arunachal Pradesh, Sikkim and Goa, the minimum number is fixed at 30 and in case of Mizoram and Nagaland, it is 40 and 46 respectively. Further, some members of the legislative assemblies in Sikkim and Nagaland are also elected indirectly.

The strength of legislative assemblies is indicated in Table 33.2.

Nominated Member Before 2020, the Governor nominated one member from the Anglo-Indian community[3] to the assembly, if the community was not adequately represented. Originally, this provision was to operate for ten years (i.e., upto 1960) only. Later, this duration has been extended continuously since then by ten years each time. The last extension upto 2020 was made by the 95th Amendment Act, 2009. But, the 104th Amendment Act, 2019, has not extended further the operation of this provision. In other words, the Amendment discontinued this provision of special representation of the Anglo-Indian community in the Assembly by nomination. Consequently, this provision ceased to have effect on the 25th January, 2020.

Territorial Constituencies For the purpose of holding direct elections to the assembly, each state is divided into territorial constituencies. The demarcation of these constituencies is done in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is the same throughout the state. In other words, the Constitution ensures that there is uniformity of representation between different constituencies in the state. The expression 'population' means, the population as ascertained at the last preceding census of which the relevant figures have been published.

Readjustment after each census After each census, a readjustment is to be made in the **(a)** total number of seats in the assembly of each state and **(b)** the division of each state into territorial constituencies. The Parliament is empowered to determine the authority and the manner in which it is to be made. Accordingly, Parliament has enacted the Delimitation Commission Acts in 1952, 1962, 1972 and 2002 for this purpose.